

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 42651/11
Teymur Ilyas oglu VALIYEV and Others
against Azerbaijan
(see appended table)

The European Court of Human Rights (Fifth Section), sitting on 3 September 2020 as a Committee composed of:

Ganna Yudkivska, *President,*
Lado Chanturia,
Anja Seibert-Fohr, *judges,*

and Liv Tigerstedt, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 11 July 2011,

Having regard to the declaration submitted by the respondent Government requesting the Court to strike the application out of the list of cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants is set out in the appended table.

The applicants were represented by Mr R. Cook, a lawyer practising in London.

The applicants' complaints under Articles 8, 9 and 11 of the Convention, taken alone and in conjunction with Article 14 of the Convention, concerning the domestic authorities' interference with a religious meeting of Jehovah's Witnesses held in the private home of the second applicant were communicated to the Azerbaijani Government ("the Government").

THE LAW

The Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issues raised by these

complaints. They further requested the Court to strike out the application in accordance with Article 37 of the Convention.

The declaration provided as follows:

> "1. The Government of the Republic of Azerbaijan hereby wishes to express – by way of unilateral declaration – acknowledgement of the fact that there have been violations of the applicants' rights guaranteed under the Convention.
>
> 2. The Government is prepared to pay to the applicants, Teymur Ilyas oglu Valiyev, Yegana Ibrahim gizi Gahramanova, Saladdin Bilvar oglu Mammadov and Rashad Huseyn oglu Niftlaliyev the sum of 4,000 EUR (four thousand euros) to each applicant to cover any and all pecuniary and non-pecuniary damage, plus any tax that may be chargeable to the applicants. This sum shall be free of any tax that may be applicable and shall be payable within three months from the date of the notification of the striking-out judgment of the Court pursuant to Article 37 § 1 (c) of the European Convention on Human Rights. From the expiry of the above-mentioned period, simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.
>
> ...
>
> 4. In the light of above, the Government would suggest that the circumstances of the present cases allow the Court to reach the conclusion that there exists 'any other reason', as referred to in Article 37 § 1 (c) of the Convention, justifying to discontinue the examination of the application, and that, moreover, there are no reasons of a general character, as defined in Article 37 § 1 *in fine*, which would require the further examination of the case by virtue of that provision. Accordingly, the Government invites the Court to strike the application out of its list of cases."

By a letter of 9 December 2019, the applicants indicated that they were not satisfied with the terms of the unilateral declaration. In particular, they contended that the issues raised in the present application have not been determined by the Court in previous cases against the respondent Government and that the Government's unilateral declaration did not address the problems underlying the alleged violations of the Convention.

The Court observes that Article 37 § 1 (c) enables it to strike a case out of its list if:

> "... for any other reason established by the Court, it is no longer justified to continue the examination of the application".

Thus, it may strike out applications under Article 37 § 1 (c) on the basis of a unilateral declaration by a respondent Government even if the applicants wish the examination of the case to be continued (see, in particular, the *Tahsin Acar v. Turkey* judgment (preliminary objections) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI).

The Court has established clear and extensive case-law concerning complaints relating to the domestic authorities' interference with Jehovah's Witnesses' meetings (see, for example, *Kuznetsov and Others v. Russia*, no. 184/02, §§ 52-75, 11 January 2007, and *Krupko and Others v. Russia*, no. 26587/07, §§ 47-57, 26 June 2014).

Noting the admissions contained in the Government's declaration as well as the amount of compensation proposed – which is consistent with the amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1 (c)).

In the light of the above considerations, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declaration, the application may be restored to the list in accordance with Article 37 § 2 of the Convention (see *Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Takes note of the terms of the respondent Government's declaration and of the arrangements for ensuring compliance with the undertakings referred to therein;

Decides to strike the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Done in English and notified in writing on 24 September 2020.

Liv Tigerstedt Acting Deputy Registrar	Ganna Yudkivska President

APPENDIX

Application raising complaints under Articles 8, 9, 11 and 14 of the Convention

Application no. Date of introduction	Applicants' names Dates of birth	Representative's name and location	Date of receipt of Government's declaration	Date of receipt of applicants' comments, if any	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
42651/11 11/07/2011 (4 applicants)	**Teymur Ilyas oglu VALIYEV** 1955 **Rashad Huseyn oglu NIFTALIYEV** 1987 **Yegana Ibrahim gizi GAHRAMANOVA** 1959 **Saladdin Bilvar oglu MAMMADOV** 1961	Cook Richard London	05/11/2019	09/12/2019	4,000

[1] Plus any tax that may be chargeable to the applicants.